

		2. CMC The court also CONTINUES the Case Management Conference to July 31, 2026, at 9:30 am in Dept W8, to be heard with the pending law and motion matter scheduled at that time. Plaintiff to give notice.
10	Chaganti vs. Red Tail Residential LLC	<u>Motion to Dismiss/Stay Action</u> The court DENIES without prejudice the motion by specially appearing Defendants RED TAIL RESIDENTIAL, LLC and LINDSY HARVEY to dismiss or stay action under the doctrine of <i>forum non conveniens</i>. Preliminarily, the court notes that the motion purports to be “made pursuant to Code of Civil Procedure §583.410, the Court’s inherent authority to dismiss as codified in Code of Civil Procedure §583.150, California Rules of Court, rule 3.1342, and California Rule of Professional Conduct 1.3(b).” (Not. of Mot. at p. 1, lines 26-28.) None of these cited authorities appear to be applicable here, as they each concern the issue of undue delay or diligence. Nonetheless, as the moving points and authorities deal with the issue and authorities concerning motions to dismiss or stay, the court analyzes the motion as being for such. (See Mov. Pts. & Auth. at p. 3, lines 17 to p. 4, line 7 [citing Code Civ. Proc., §§ 418.10(a), (e), 410.30(a), 396b].) <i>Mandatory Forum Selection Clause?</i> While not explicit, Defendants appear to argue that the parties entered into a mandatory forum selection clause. Defendants argue that Plaintiff’s claims arise from a residential lease dispute between them, which states: “Should either Party file a lawsuit arising out of this Lease Contract said lawsuit shall be exclusively filed and heard in state court located in the county where the apartment community is located. This Lease Contract shall be

governed by the laws of the state of Missouri.” (Carney Decl., ¶ 3, Exh. A at p. 7, ¶ 41.)

When a case involves a mandatory forum selection clause, the traditional forum non convenien analysis does not apply. (See *Intershop Communications v. Superior Court* (2002) 104 Cal.App.4th 191, 198 [“[A] motion on traditional grounds of forum non conveniens is addressed to the discretion of the trial court to decline jurisdiction, and the trial court retains a ‘flexible power’ to consider and weigh all the factors.... In contrast, in cases with a contractual forum selection clause, the burden of proof is on the plaintiff, the party resisting the motion.”].) A mandatory forum selection clause is presumed valid and will be enforced unless enforcement of the clause would be unreasonable under the circumstances of the case. (See, e.g., *Smith, Valentino & Smith, Inc. v. Superior Court* (1976) 17 Cal.3d 491, 496; *Quanta Computer Inc. v. Japan Communications Inc.* (2018) 21 Cal.App.5th 438, 444; *Intershop*, 104 Cal.App.4th at 198.)

To the extent that Defendants are arguing that a mandatory forum selection clause mandates dismissal, Defendants have failed to offer admissible evidence of a contract between the parties containing a mandatory forum selection clause.

Plaintiff challenges Defendants’ failure to authenticate the lease agreement that is attached as Exhibit A of the Declaration of Terence Carney, defense counsel. Mr. Carney appears to lack the ability to authenticate the lease agreement. And Plaintiff filed a declaration stating, “I entered into no written agreement *with Red Tail*” and that “*Red Tail and I* have not agreed to any forum selection clause that requires this suit to be filed in St. Louis County, Missouri.” (Naren Chaganti Decl., ¶¶ 4-5, emphasis supplied). The second amended complaint references a written lease with Red Tail (SAC, ¶3) but does not attach the lease agreement. And Plaintiff now appears to believe that Red Tail is not the owner of the Missouri apartment complex. (Chaganti Decl., ¶¶ 2-3.)

As such, it is unclear if the lease agreement attached as Exhibit A (which is purportedly between an FLT HUNTERS